

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal to the Court of
Appeal from the Judgment of the Provincial
High Court of the North Western Province
Holden in Chilaw.

Court of Appeal Case No:
CA/PHC 180/2017

HC Chillaw Case No: HCR 9/17

MC Marawila Case No: 8163/D

Officer In Charge,
Police Station Dankotuwa.

Complainant

Vs.

K.A. Jude Rohan Prasanna,
No. 6 St. Anthony's Mawatha, Thabarawila,
Waikala.

Accused

N. Premakanthi,
No. 16, Madamgahawatta, Thabarawila,
Waikala.

Registered Owner Claimant

And between

N. Premakanthi,
No. 16, Madamgahawatta, Thabarawila,
Waikala.

Registered Owner Claimant- Petitioner

Vs.

Officer In Charge,
Police Station Dankotuwa.

Complainant-Respondent

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Respondent

And now between

N. Premakanthi,
No. 16, Madamgahawatta, Thabarawila,
Waikala.

Registered Owner- Petitioner- Appellant

Vs.

Officer In Charge,
Police Station Dankotuwa.

Complainant-Respondent- Respondent

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Respondent- Respondent

Before: **Damith Thotawatte, J.**
K.M.S. Dissanayake, J.

Counsels: Shanaka Ranasinghe, PC., with Niroshan Mihindukulasooriya
and Ms. Anushika Ranasinghe for the Claimant – Petitioner-
Appellant.

Shemanthi Dunuwille, SC for the Respondent- Respondent.

Written submissions
tendered on: 10.02.2022, 30.01.2023 & 05.06.2026 by Claimant –
Petitioner- Appellant.
28.08.2026 by all the Respondents.

Judgement Delivered: 01.09.2026

Introduction

The present appeal has been preferred by the Registered Owner-Petitioner-Appellant, N. Premakanthi (identified in Written Submissions as Registered Owner Claimant -Petitioner-Appellant and hereinafter for reasons of convenience referred to as the "Appellant"), against the order dated 31.10.2017 of the learned High Court Judge of the Provincial High Court of the North Western Province holden at Chilaw exercising revisionary jurisdiction in H.C. Revision Application No. 09/2017, whereby the learned High Court Judge affirmed the order dated 31.03.2017 made by the learned Magistrate of Marawila in Case No. 8163/D directing the confiscation of Motor Lorry bearing Registration No. NW GD 7664 under Section 3A of the Animals Act, No. 29 of 1958, as amended.

Facts

On 05.02.2016 officers attached to the Police Station, Dankotuwa detected Motor Lorry bearing Registration No. NW GD 7664 transporting cattle without a lawful permit. The driver of the vehicle, K.A. Jude Rohan Prasanna, was arrested and produced before the learned Magistrate of Marawila.

The Accused was charged with transporting cattle in contravention of Section 3 of the Animals Act, No. 29 of 1958, as amended, read together with the relevant Regulations made thereunder and with conveying animals in a cruel manner contrary to Section 2(1)(c) of the Prevention of Cruelty to Animals Ordinance No. 13 of 1907 under case No 8163 D of the Magistrate Court of Marawila .

On 12.02.2016, K.A. Jude Rohan Prasanna, the Accused in Magistrate's Court Case No. 8163/D, pleaded guilty to both charges preferred against him. Upon recording the plea of guilt, the learned Magistrate convicted the Accused, imposed the prescribed fines, and fixed the matter for a separate inquiry under Section 3A of the Animals Act to determine whether the vehicle used in the commission of the offences should be confiscated.

The Appellant, being the registered owner of the said vehicle, had moved Court seeking its release, pending the conclusion of the confiscation inquiry. Consequently, the vehicle had been released to the Appellant upon a bond in the sum of Rs. 250,000/-.

The confiscation inquiry thereafter proceeded before the learned Magistrate. The Appellant testified on her own behalf and also led the evidence of K.A. Jude Rohan Prasanna, the convicted driver of the vehicle in support of her application. Upon considering the evidence adduced before Court, the learned Magistrate by order dated 31.03.2017 directed that the vehicle be confiscated in terms of Section 3A of the Animals Act.

Aggrieved by the said order, the Appellant invoked the revisionary jurisdiction of the Provincial High Court.

Proceedings before the Provincial High Court

The principal contention advanced before the learned High Court Judge was that the learned Magistrate had failed properly to appreciate the evidence led at the disposal inquiry and had erred in concluding that the Appellant had failed to establish the protection afforded by the proviso to Section 3A of the Animals Act.

It was further contended that the evidence of the Accused established that the vehicle had been used without the knowledge of the Appellant and that the learned Magistrate had therefore acted contrary to law in directing confiscation.

The learned High Court Judge, having examined the proceedings before the learned Magistrate and considered the submissions of the respective parties, held that the learned Magistrate had correctly appreciated the evidence placed before Court and that no illegality, material irregularity or miscarriage of justice had been established so as to justify the exercise of the revisionary jurisdiction of the Court. Accordingly, the revision application was dismissed by judgment dated 31.10.2017.

Being dissatisfied with the judgment of the Judge of the High Court Appellant has preferred the instant appeal against that judgment.

Grounds of Appeal

- a) That the learned High Court Judge failed to appreciate that the Appellant was merely the registered owner of the vehicle and had no knowledge of its unlawful use.

- b) The learned High Court Judge failed to appreciate that the learned Magistrate had failed to properly evaluate the evidence and exercise the revisionary jurisdiction according to law.
- c) That the learned Magistrate failed to properly evaluate the evidence adduced on behalf of the Appellant, in particular the testimony of the former accused, K.A. Jude Rohan Prasanna.
- d) That the confiscation order was contrary to law in view of the protection afforded to innocent third-party owners under the proviso to Section 3A of the Animals Act
- e) In further written submissions submitted to the Court of Appeal the Appellant has further contended that the conviction recorded against the Accused was legally unsustainable, as the charges had been framed under incorrect statutory provisions and by reference to an unrelated Gazette notification.

It is pertinent to note that, on 03.03.2026, learned President's Counsel for the Appellant and learned State Counsel for the Respondents agreed that the appeal could be disposed of by judgment on written submissions, with the Appellant being permitted to file further submissions based on an authority supporting its contention and the Respondents being afforded an opportunity to reply. By the date initially fixed for judgment, only the Appellant had filed further written submissions, approximately two months out of time, without serving a copy on the Respondents. Upon the Appellant undertaking to serve the written submissions on the Respondents, the Respondents were granted further time to file their written submissions, and judgment was refixed for today.

Position of the Respondents in the Courts below

It had been submitted on behalf of the Respondents that Section 3A of the Animals Act expressly places the burden of proof on the owner seeking the benefit of the proviso and that the learned Magistrate, upon a proper evaluation of the evidence adduced at the inquiry, correctly found that the Appellant had failed to discharge that burden.

Statutory Scheme

The principal question that arises for determination is whether the learned High Court Judge erred in refusing to interfere with the order of the learned Magistrate directing confiscation of the vehicle.

Section 3A of the Animals Act provides that where a person is convicted of an offence under Part II of the Act or the Regulations made thereunder, any vehicle used in the commission of such offence shall be liable to confiscation by order of the convicting Magistrate. The proviso to the section, however, creates an exception in favour of an innocent third-party owner. Such owner is required to establish, to the satisfaction of Court, either that all reasonable precautions had been taken to prevent the commission of the offence or that the vehicle had been used without the owner's knowledge.

The statutory burden is therefore expressly placed upon the owner seeking the benefit of the proviso. Once it is established that the vehicle had been used in the commission of the offence and the offender has been convicted, the inquiry before the learned Magistrate is confined to determining whether the owner has succeeded in bringing himself or herself within either limb of the proviso.

Analysis

Aforesaid principle has consistently been recognized by this Court. In *Faris v. The Officer-in-Charge, Police Station, Galenbindunuwewa and Another*¹, it was held that an order for confiscation cannot be made where the owner establishes, on a balance of probabilities, either that he had taken all reasonable precautions to prevent the use of the vehicle for the commission of the offence or that the vehicle had been used without his knowledge. In determining whether the owner had discharged that burden, the Court considered the entirety of the evidence adduced, including both the Petitioner's evidence and the evidence relied upon by the prosecution.

In *Matilda Silva v. Inspector of Police, Habarana*², this Court held that the owner cannot discharge the burden imposed by the proviso to section 3A by a mere assertion that instructions had been given to the driver or that the vehicle had been used without the owner's knowledge. The owner must establish, by satisfactory evidence, that genuine precautions had in fact been taken to prevent the commission of the offence or that the vehicle had been used without the owner's knowledge.

The same approach has consistently been followed in the subsequent decisions of this Court, including *Deekirikewage Don Nelurn Inoka Rose Vs. Officer-in-Charge, Police Station,*

¹[1992] 1 SLR 167

² [2020] 02 Sri.LR 265

*Kuliyapitiya and Others*³, *Abuthalibu Mujeeba v. Hon. Attorney General and Others*⁴, and *Navur Pichchei Moosin Vs. Officer-in-Charge Police Station, Bakamuna*⁵. Those decisions reaffirm that, whilst ownership entitles a claimant to invoke the protection of the proviso to Section 3A, the decisive inquiry before the learned Magistrate is whether the owner has discharged the statutory burden of establishing either of the matters contemplated by the proviso.

The Appellant had given evidence that she had no knowledge of the unlawful transportation of cattle in her vehicle. The Convicted Accused of the original offence has also testified that he had acted without informing the Appellant. It is the contention of the Learned Counsel for the Appellant that such evidence ought to have been accepted by the learned Magistrate in the Appellants favor.

The learned Magistrate, however, was not required to determine the matter upon the mere assertion of the Appellant or the evidence of the former Accused alone. The learned Magistrate was required to evaluate the entirety of the evidence placed before Court together with the surrounding circumstances and determine whether the Appellant had discharged the burden imposed by the proviso to Section 3A. Further the learned Magistrate in his order has given reasons as to why he is not accepting the evidence of the Appellant and the former Accused.

The record discloses that the learned Magistrate afforded the Appellant every opportunity to adduce evidence in support of her application. The learned Magistrate considered both the evidence of the Appellant and that of the Accused before concluding that the Appellant had failed to establish either of the statutory requirements contained in the proviso. That conclusion was one which the learned Magistrate was entitled to reach upon the evidence before Court.

The principal criticism advanced against the judgment of the learned High Court Judge is that the learned High Court Judge ought to have taken a different view of the evidence. However, I am unable to agree with that submission.

The learned High Court Judge was exercising the revisionary jurisdiction of the Provincial High Court. The jurisdiction invoked before that Court was not appellate and the purpose of the revisionary jurisdiction is to correct jurisdictional error, patent illegality, material

³ CA (PHC) 24/2015, Decided on 1.08.2019

⁴ CA (PHC) APN 122/2015, Decided on 30.01. 2018

⁵ CA (PHC) 3/2016 Decided on 20.11. 2020

irregularity or a miscarriage of justice. It is not intended to substitute the High Court's own appreciation of the evidence merely because another conclusion may also have been possible.

The learned High Court Judge examined the proceedings before the learned Magistrate for the purpose of determining whether the order directing confiscation was vitiated by any such defect. Having considered the proceedings in their entirety, the learned High Court Judge found no illegality or material irregularity warranting revisionary intervention.

Accordingly, the question before this Court is not whether another view of the evidence led before the learned Magistrate was possible. The question is whether the learned High Court Judge erred in refusing to interfere with the order of the learned Magistrate in the exercise of the revisionary jurisdiction.

Upon a careful consideration of the proceedings before both Courts, I am unable to hold that the learned High Court Judge misdirected himself in law or failed to exercise the jurisdiction vested in that Court according to the settled principles governing revisionary jurisdiction.

The learned Magistrate correctly appreciated the nature of the inquiry required under Section 3A of the Animals Act. The learned Magistrate identified the statutory burden imposed upon the Appellant, considered the entirety of the evidence adduced before Court and concluded that the Appellant had failed to establish either limb of the proviso. The learned High Court Judge was therefore fully justified in holding that no ground existed for revisionary interference.

The Validity of the Conviction

In this court the Appellant further contended that the conviction recorded against the Accused was legally unsustainable, as the charges had been framed under incorrect statutory provisions and by reference to an unrelated Gazette notification. In respect of the first charge, the Accused was charged with transporting cattle without a lawful permit under Section 16 of the Animals (Amendment) Act, No. 46 of 1988 read together with Section 37 of the Animals Act, No. 29 of 1958 and Extraordinary Gazette No. 26 of 2009 published under No. 1229/17.

It was submitted by the Appellant that Gazette No. 1229/17 is unrelated to the Animals Act, being a Gazette pertaining to the Minute of the Office Employees' Service, and therefore has no application to the transportation of livestock. The Appellant maintained that the regulations governing the transportation of livestock were, in fact, promulgated under Section 35 of the Animals Act by Extraordinary Gazette No. 1629/17 dated 26.11.2009, which prescribes the requirement of a transport permit and the conditions applicable to the transportation of animals.

The Appellant further submitted that the second charge was likewise defective in that it purported to charge the Accused with an offence under Section 2(1)(c) of the "Prevention of Cruelty to Animals Act No. 29 of 1958", whereas, according to the Appellant, no enactment exists by that title and number, the governing legislation being the Prevention of Cruelty to Animals Ordinance, No. 13 of 1907, as amended. On that basis, it was contended that both charges were framed under erroneous legal provisions and even though the accused had pleaded guilty, the conviction founded thereon were consequently invalid. The Appellant therefore argued that the subsequent confiscation inquiry could lawfully proceed only upon a valid conviction. Accordingly, there is no basis for a confiscation in the absence of such a conviction.

It is before this court that the Appellant has, for the first time, sought to impugn the validity of the charges upon which the accused persons were convicted and, consequently, the legality of the conviction itself. This contention was neither advanced before the learned Magistrate at the confiscation inquiry nor urged before the learned High Court in the exercise of its revisionary jurisdiction.

A challenge with regards to the conviction is not ordinarily available to the Appellant in the stage of the present proceedings. The instant appeal does not arise from the conviction of the accused (of the original offence) but from the subsequent order of confiscation made in terms of section 3A of the Animals Act. The Appellant appears before Court solely in the capacity of the registered owner of the vehicle and not as an accused person against whom the conviction was entered. Accordingly, the scope of the present appeal is confined to examining the legality and propriety of the confiscation order and the correctness of the judgment of the learned High Court affirming that order. It is not an appeal in which the underlying conviction falls to be reviewed.

The Appellant contends that the confiscation inquiry was devoid of a lawful foundation because the charges framed against the Accused did not disclose offences under applicable

penal provisions. Reliance is placed upon *Ranbandarage Hasitha Sulochana Priyarathne v. Officer-in-Charge, Police Station, Eheliyagoda and another*⁶,

The Appellant submits that the charges referred to inapplicable or non-existent legal provisions and that the Accused was, in effect, convicted under imaginary penal provisions. It is therefore argued that there was no valid conviction capable of supporting the subsequent confiscation inquiry.

The distinction drawn in *“Ranbandarage”* is material. That decision does not establish that every erroneous statutory reference in a charge renders the resulting conviction invalid. It distinguishes between a technical defect in a charge which nevertheless discloses an identifiable offence and a fundamental defect amounting in law to the absence of a charge.

In *H.G. Sujith Priyantha v. Attorney General and Others*⁷, the Court held that a registered owner claiming a vehicle under the proviso to Section 40 of the Forest Ordinance could not, after the accused had pleaded guilty and been convicted, impeach that conviction by relying upon defects in the charge. The proceedings considering the confiscation of vehicle was not an occasion for the registered owner to belatedly reopen an otherwise subsisting conviction.

In *“Ranbandarage”*, however, the charge cited regulations which governed the expiry of an existing permit and the infringement of conditions attached to such a permit, although the allegation was that timber had been transported without any permit. More importantly, no applicable penal provision of the Forest Ordinance had been identified. The Court was therefore unable to ascertain under what provision the Magistrate had convicted and punished the accused. It was in those particular circumstances that the Court held that conviction under an “imaginary penal provision” amounted to conviction without a charge.

The present case is distinguishable. The charges expressly informed the Accused of the conduct alleged against him. The first charge alleged that he transported cattle without a lawful permit. The second alleged that, in the course of that transportation, he subjected the animals to treatment constituting cruelty within the meaning of Section 2(1)(c). The nature of each accusation was therefore apparent from the face of the charges. This is not

⁶ CA (PHC) 143/2017, decided on 02.08.2023.

⁷ CA (PHC) 157/2012, decided on 19.02.2015

a case in which no criminal conduct was alleged or in which the Court is left entirely to speculate as to the offences for which the Accused was convicted.

The reference in the first charge to Gazette No. 1229/17 appears to have been erroneous. Similarly, the description of the enactment in the second charge appears to have combined the title of the Prevention of Cruelty to Animals Ordinance with the number and year of the Animals Act. Those are errors that ought not to have occurred. A Magistrate bears the responsibility of ensuring, before recording a plea, that a charge correctly identifies the applicable law and contains the essential ingredients of the alleged offence.

Nevertheless, an incorrect Gazette number or an inaccurate description of an enactment does not, without more, establish that no offence known to law was charged. The decisive consideration is whether the charge, read as a whole, conveyed the substance and ingredients of an identifiable offence and whether the Accused was misled or prejudiced in answering it.

The Accused pleaded guilty to both charges. There is no material suggesting that he misunderstood the acts alleged against him, was uncertain whether the allegation concerned transportation without a permit or cruelty to the animals being transported, or was otherwise misled in entering his plea. Nor has the Appellant demonstrated that the conduct alleged in the charges differs from the conduct prohibited by the statutory provisions which, according to the Appellant, ought to have been cited.

The Appellant, who was not the Accused, seeks to rely upon inaccuracies in the statutory references after the convictions had been entered and in the course of proceedings concerning the confiscation of the vehicle. Her proprietary interest gives her standing to question a fundamental illegality which deprives the confiscation inquiry of its statutory foundation. It does not, however, convert every error in the drafting of a charge into the absence of a valid conviction.

The Appellant's argument proceeds on the basis that an incorrect description of the applicable enactment or Gazette necessarily invalidates the charges, irrespective of whether the offences were otherwise clearly identified or the Accused was not misled or prejudiced by the error. *"Ranbandarage"* does not support that proposition. It distinguishes a fundamental defect that leaves no valid charge in law from a merely technical defect in an otherwise intelligible charge, to which the principle in *"H.G. Sujith Priyantha"* continues to apply.

I am therefore unable to accept that the present charges were equivalent to no charges at all. Although the statutory and Gazette references were inaccurately stated, the offences alleged against the Accused were identifiable from the charges, the Accused pleaded guilty to them, and no prejudice or misunderstanding has been demonstrated. The defects consequently fall on the technical side of the distinction recognized in *“Ranbandarage”* and do not render the convictions incapable of sustaining the consequential inquiry relating to the vehicle.

The Appellant’s contention that the confiscation proceedings were without a lawful foundation is accordingly rejected.

Conclusion

In the foregoing circumstances, I find no merit in any of the grounds urged in the Petition of Appeal warranting interference with the judgment under appeal. I hold that the learned High Court Judge committed no error in dismissing the revision application and affirming the order of the learned Magistrate directing confiscation of the vehicle under Section 3A of the Animals Act.

The judgment of the learned High Court Judge dated 31.10.2017 is affirmed and the appeal is dismissed subject to costs.

Judge of the Court of Appeal

K.M.S. Dissanayake, J.

I agree

Judge of the Court of Appeal